

24STCV29686 24STCV29686

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Case Number: 24STCV29686 Hearing Date: September 24, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 20

Hearing Date: Thursday, September 24, 2026

Case Name: Mario Velazquez v. General Motors, LLC

Case No.: 24STCV29686

Motion: Motion for Attorney Fees

Moving Party: Plaintiff Mario Velazquez

Responding Party: Defendant General Motors, LLC

Notice: OK

Ruling: The motion for Attorney Fees and Costs is GRANTED.

If counsel do not submit on the tentative, they are strongly encouraged to appear by LACourtConnect rather than in person due to the COVID-19 pandemic.

BACKGROUND

On November 12, 2024, Plaintiff Mario Velazquez filed a Song-Beverly Act complaint for defects with a Silverado 1500 vehicle. On May 5, 2026, Plaintiff filed a notice of settlement of the entire case.

DISCUSSION

APPLICABLE LAW

Code of Civil Procedure section 1021 states: "Except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties; . . ."

Code of Civil Procedure section 1032, subdivision (b) states: "Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding."

Code of Civil Procedure section §1033.5, subdivision (a)(10)(B) states that attorney fees when authorized by statute are allowable as costs and may be awarded upon a noticed motion pursuant to Code of Civil Procedure section 1033.5, subdivision (c)(5).

Civil Code section 1794 states, in part: "(a) Any buyer of consumer goods who is damaged by a failure to comply with any obligation under this chapter or under an implied or express warranty or service contract may bring an action for the recovery of damages and other legal and equitable relief. . . . (d) If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

"The trial court has 'broad authority' to determine the amount of a reasonable attorneys' fees. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) "[T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (Id. ["California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award."].) "Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records." (Martino v. Denevi (1986) 182 Cal. App. 3d 553, 559.) "General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Premier Medical Management Systems, Inc. v. California Ins. Guarantee Ass'n (2008) 163 Cal. App. 4th 550, 564.)

APPLICATION TO FACTS

On May 5, 2026, Plaintiff filed a notice of settlement of the entire case. On the same date, the court set an OSC re: Dismissal pursuant to the settlement agreement for July 7, 2026. The hearing was continued to September 24, 2026.

Plaintiff moves for \$31,930.71: (1) \$23,910.50 in attorney fees; (2) \$847.06 in costs and expenses; and (3) a 0.3 multiplier enhancement on the attorney fees (or \$7,173.15). GM challenges the motion as untimely, unreasonable in the amount of fees and no entitlement to costs. Plaintiff in reply contends the settlement remains contingent on the dismissal of the action, which remains pending. Plaintiff defends the reasonableness of the fees and costs.

Timing

A motion for attorney fees must be served and filed within the time for the filing of a notice of appeal in a civil case. (Cal. Rules Ct., rule 3.1702(b)(1).) The time for the filing of a notice of appeal in an unlimited action is 60 days if a "Notice of Entry" of Judgment was served by the court clerk or a party to the action, or within 180 days of entry of judgment. (California Rules of Court rule 8.104.) No judgment has been entered on this action. Plaintiff only filed a notice of settlement.

The time for the filing of a motion for attorney fees may in fact accrue upon a voluntary dismissal of an action in that the dismissal constitutes an “effective[] judgment” even if not an appealable action. (*Sanabria v. Embrey* (2001) 92 Cal.App.4th 422, 427.) “A written dismissal of an action shall be entered in the clerk’s register and is effective for all purposes when so entered. [¶] All dismissals ordered by the court shall be in the form of a written order signed by the court and filed in the action and those orders when so filed shall constitute judgments and be effective for all purposes, and the clerk shall note those judgments in the register of actions in the case.” (Code Civ. Proc., § 581d.) “Thus, ‘the clock starts to run [on the time to move for attorney fees] from either the service of notice of entry of judgment or dismissal (starting a 60-day clock), or if no such notice is given, the entry of judgment or dismissal (starting a 180-day clock).’ (Citation.)” (*Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644, 649.)

The OSC re: Dismissal is concurrently set for September 24, 2026. The court assumes the parties will stipulate to a dismissal pursuant to Code of Civil Procedure section 664.6, and Plaintiff will be identified as the prevailing parties for purposes of statutory recovery pursuant to the terms of the settlement agreement. (Code Civ. Proc., §§ 1032, subd. (a)(4); 1033.5, subd. (a)(10)(B); Civ. Code, § 1794, subd. (d)). The court also assumes the settlement agreement delegates determination of statutorily recoverable fees and costs to the court, thereby entitling Plaintiffs to bring the subject motion. (*Engle v. Copenbarger & Copenbarger, LLP* (2007) 157 Cal.App.4th 165, 168–169.) The court therefore finds the motion timely and will consider the merits of the request.

Fees and Costs

Plaintiff has “the burden of showing that the fees incurred [are] ‘allowable,’ [are] ‘reasonably necessary to the conduct of the litigation,’ and [are] ‘reasonable in amount.’” (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 816; *Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 34.) The statute “requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount.” (*Nightingale v. Hyundai Motor America* (1994) 31 Cal.App.4th 99, 104.) The lodestar method for determination of fees applies. (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 819.)

“[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. [Citation.] The purpose of such adjustment is to fix a fee at the fair market value for the particular action. In effect, the court determines, retrospectively, whether the litigation involved a contingent risk or required extraordinary legal skill justifying augmentation of the unadorned lodestar in order to approximate the fair market rate for such services.” (*Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 154.)

The reasonableness of attorney fees lies within the discretion of the trial court. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1096.) The court makes its determination based on the consideration of a number of factors, including, “the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case.” (*Ibid.*) The court should apply an objective standard of reasonableness. (*Id.* at p. 1098.) “A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether.” (*Serrano v. Unruh* (1982) 32 Cal.3d 621, 635.) The court adheres to the “market rate” approach for contingency cases, and finds the “Laffey” charts general and only suggestive. (*Pasternack v. McCullough* (2021) 65 Cal.App.5th 1050, 1057; *Center for Biological Diversity v. County of San Bernardino* (2010) 188 Cal.App.4th 603, 619-620.)

The two page statement lacks specific final totals of hours billed by Alexander Khoubian at \$575 per hour, attorney Philip McCabe at \$430 per hour, and paralegal time at \$250/hour. The billing begins with client consultation on November 10, 2024, and ends with requested fees anticipated for the subject motion and hearing. [Declaration of Alexander Khoubian, Ex. A.]

The subject action was taken on a contingency basis, with statutory recovery of attorney fees an assumed condition for any recovery fees by counsel. Song-Beverly litigation constitutes a specialty, due to the extensive statutory guidelines and technical requirements in analyzing a vehicle. The court however finds the represented hourly rates excessive and reduces all rates as follows: \$500/hour, attorney McCabe at \$400/hour, and paralegal time at \$175/hour. The court finds the subject billable rates commensurate with an experienced consumer advocate litigator in Los Angeles County. (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247, 256; *Center for Biological Diversity v. County of San Bernardino*, supra, 188 Cal.App.4th at pp. 619-620; see *Lindy Bros. Builders, Inc. of Phila. v. American Radiator & Standard Sanitary Corp.* (3d Cir. 1973) 487 F.2d 161, 167.)

The court next considers the listed entries. “In referring to ‘reasonable’ compensation, we indicated that trial courts must carefully review attorney documentation of hours expended; ‘padding’ in the form of inefficient or duplicative efforts is not subject to compensation.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132; *Levy v. Toyota Motor Sales, U.S.A., Inc.*, supra, 4 Cal.App.4th at p. 817.) The court considers the listings rather than engage in a categorical determination of entitlement. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 40; *Mountjoy v. Bank of America, N.A.* (2016) 245 Cal.App.4th 266, 280-281; *Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1329.)

GM takes issue with certain entries, such as the time spent on the instant motion, the pre-engagement time, excessive time spent on correspondence, including discovery, clerical tasks, and research time.

The court finds no specific documented examples of unrelated work leading to the settlement, and no basis for denial of recovery the standard \$3,500 pre-litigation “flat rate.” While the case was undertaken on contingency, a flat fee for undertaking the research in the decision appears reasonable, though it remains unknown as to the experience of counsel with the subject vehicle model year and make. The court therefore finds the research and time spent reasonable. The drafting of the complaint and response to the answer, entries also appear reasonable.

The several hours spent on discovery from May 22, 2025, through November 10, 2025, however appears excessive given the routine nature of the subject cases, statutes facilitating discovery exchanges, lack of any law and motion, and the experience of counsel. The court also finds the number of client communications curiously high with vague entries only indicating “communication with client.” The court will reduce total discovery and client communications from May 22 to November 24, 2025 (see below). The court otherwise finds the \$1,763 on the instant motion by attorney McCabe reasonable, but will reduce the review time and appearance by lead counsel as well.

Multiplier

When considering a lodestar enhancement request, the court must consider a series of factors. “[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.” (*Ketchum v. Moses*, supra, 24 Cal.4th at p. 1132.) “Contingency and delay factors” apply in consideration of the application of a lodestar enhancement in order to reflect the ‘semiguaranteed’ recovery of fees upon a successfully prevailing party, but any consideration must still acknowledge the “contingency” nature of representation in general. (*Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 400 (footnote 11).)

“In *Serrano IV*, applying the same principles to the statutory fee award under Code of Civil Procedure section 1021.5, we reiterated that fee awards should be fully compensatory. We approved the calculation of attorney fees beginning with a lodestar figure based on the reasonable hours spent, multiplied by the hourly prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type. (Citation.) [¶] We held in *Serrano IV* that, absent circumstances rendering the award unjust, an attorney fee award should ordinarily include compensation for all the hours reasonably spent, including those relating solely to the fee. (Citation.) We explained that the purpose behind statutory fee authorizations—i.e., encouraging attorneys to act as private attorneys general and to vindicate important rights affecting the public interest—‘will often be frustrated, sometimes nullified, if awards are diluted or dissipated by lengthy, uncompensated proceedings to fix or defend a rightful fee claim.’ (Citation.) [¶] We acknowledged the discretion of the trial court in setting attorney fees, but emphasized that because the determination of the lodestar figures is so fundamental to arriving at an

objectively reasonable amount, 'the exercise of that discretion must be based on the lodestar adjustment method.' (Ibid.) We also reiterated that the lodestar figure may be increased by application of a fee enhancement, or reduced as appropriate, after the trial court has considered other factors concerning the lawsuit, including the contingent nature of the fee award." (Ketchum v. Moses, supra, 24 Cal.4th at pp. 1133–1134.)

The court declines to award a multiplier on the subject action. "The lodestar amount is presumptively the reasonable fee amount, and thus a multiplier may be used to adjust the lodestar amount upward or downward only in " 'rare' and 'exceptional' cases, supported by both 'specific evidence' on the record and detailed findings by the lower courts" that the lodestar amount is unreasonably low or unreasonably high." (Van Gerwen v. Guarantee Mut. Life Co. (9th Cir. 2000) 214 F.3d 1041, 1045.) The court finds the lodestar determination sufficiently addresses the fee. Nothing in the litigation over the subject vehicle demonstrates a rare or exceptional case showing a significant benefit beyond compensation under the consumer remedies, as well as a fee reflecting the contingency nature of the representation. (Blum v. Stenson (1984) 465 U.S. 886, 901; Hensley v. Eckerhart (1983) 461 U.S. 424, 434; see Thayer v. Wells Fargo Bank, N.A. (2001) 92 Cal.App.4th 819, 844.)

Costs

On costs, the court accepts the filing fees even without documented verification. The court also finds the mediation fees valid.

Total Fees

Again, counsel provides no separate totals of the fees between the paralegal and attorney time. The court calculates the presented lead attorney fees of \$11,147.50 (approximately 20 hours), associate counsel at \$1,763 (4.1 hours), with the remaining \$11,000 (44 hours) billed by the paralegal (\$23,910.50 - \$11,147.50 – \$1,763). The court deducts five (5) hours of lead attorney time 15 for a total of 15 hours, and deducts 15 hours of paralegal time to 29 hours. Under the lower hourly rates, total recoverable fees are therefore \$14,215 (\$7,500 (15 x \$500) + \$1,640 (4.1 x \$400) + \$5,075 (29 x (\$175)) with total recoverable costs of \$847.06. The court therefore awards a total recovery of \$15,062.06.

CONCLUSION

Plaintiff Velazquez's motion for attorney fees and costs is GRANTED.

Because the amount of fees exceeds \$5,000, the order is immediately appealable. (Code Civ. Proc., 904.1, subd. (a)(12); Doe v. Luster (2006) 145 Cal.App.4th 139, 146.)

Velazquez to give notice.

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